

sede them, is to apply under the Settled Estates Act for that purpose (c).

2. It may be observed that the powers of the trustees, for the exercise of which the consent of the tenant for life is required, are those *conferred by the settlement*, the enactment does not touch general powers exercisable by the trustees *virtute officii*.

3. The effect of the enactment stated shortly is that any special power given to trustees for any of the purposes for which similar powers are given by the Settled Land Act to the tenant for life cannot be exercised without his concurrence.

4. **Consent of all tenants for life in possession required by Act of 1882.** — By the definition of a tenant for life it is provided that if, in any case, there are two or more persons entitled for life to possession of settled land as tenants in common, or as joint tenants, or for other concurrent estates or interests, they together constitute the tenant for life for the purposes of the Act. And by sect. 58, the limited owners therein specified are to have the powers of a tenant for life, and the provisions of the Act referring to a tenant for life are to extend to each of such limited owners, and reading these provisions with the 56th section, it resulted that where several persons were concurrently entitled as tenants for life, or as such limited owners, in possession to the income of the settled land, the consent of all of them was necessary to the exercise by the trustees of the powers affected by the section.

**Consent of one sufficient under Act of 1884.** — This [\*623] was found in practice to lead \*to useless delay and expense, and to remedy the evil it was enacted by the Settled Land Act, 1884 (a), that where two or more persons together constitute the tenant for life for the purposes of the Settled Land Act, 1882, then, notwithstanding anything contained in sub-sect. (2) of sect. 56 of that Act, requiring the consent of all those persons, the consent of one only of

[(c) *Re Poole's Settlement*, 32 W. Haden's Settled Estates, 32 W. R. 956; 50 L. T. N. S. 585. *Re Barrs*- 194.]

[(a) 47 & 48 Vict. c. 18, s. 6 (2).]